

State of Alaska – Office of the Governor — 34th Alaska State Legislature – Second Session
DEPARTMENT REVIEW – PASSED LEGISLATION

BLUE SHEET

Blue Sheets are a department's final bill analysis and provides the Commissioner an opportunity to weigh in on legislation that has passed, with a recommendation to the Governor on action that may be taken— to enact the bill, to veto the bill, or to allow the bill to become Law without signature (LWOS). Much of the information requested in the Blue Sheet can be taken from the department's bill analyses (BA), which were initially submitted at the time the bill was introduced and updated throughout the legislative process.

Blue sheets are due to the GLO three days after the enrolled bill appears on basis, or sooner by request.

Department: DOA

Date: 5/18/2026

Bill Number: SB 104

Short Title (as it appears on BASIS): VEHICLES/BOATS: TRANSFER ON DEATH TITLE

What action do you recommend the Governor take?

Select one.

☒ SIGN ☐ VETO ☐ LWOS

Action Justification – Why do you recommend the above action?

Please be specific.

This bill provides Alaskans with a clear, efficient, and legally recognized method to transfer ownership of vehicles and boats upon death without requiring probate, reducing administrative burdens on families, courts, and the state. The legislation establishes a structured transfer-on-death (TOD) title process with appropriate safeguards for creditors, surviving family members, and existing lienholders while maintaining the owner's full control of the property during their lifetime.

What does this Bill do?

In addition to providing a succinct bill summary, please also consider the following: Why is this bill needed? How does it specifically change department programs? What is the anticipated impact on the public, the private sector? Does this bill align with the priorities of Governor Dunleavy?

This bill creates a new process allowing owners of vehicles and boats in Alaska to designate a transfer-on-death (TOD) beneficiary directly on the certificate of title. Upon the death of the

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owner, ownership of the vehicle or boat may transfer directly to the named beneficiary without requiring probate, provided statutory requirements are met. The bill establishes procedures for creating, changing, or revoking a TOD designation, outlines how the Department of Administration will issue updated titles, and provides protections for creditors and estates. The legislation also authorizes the department to adopt regulations, create forms, and implement system and programming changes necessary to administer the new title type. In addition, the bill expands existing transfer-on-death property provisions related to common interest community ownership interests.

Detailed Sectional Analysis

The full sectional analysis of the bill should be completed by the lead agency. Other departments should include an analysis for sections of the bill affecting their agencies.

Section 1: Amends AS 05.25 by adding a new section, AS 05.25.058, relating to boats. This section authorizes the owner of a boat for which the Department of Administration issues or allows issuance of a certificate of title to obtain a transfer-on-death (TOD) title under new AS 13.33.401. This establishes statutory authority for TOD titling of boats in Alaska.

Section 2: Amends AS 13.33.101(a) relating to nontestamentary transfers. This section clarifies that a transfer of a boat or vehicle by a transfer-on-death title under AS 13.33.401 is considered a nontestamentary transfer. This means the transfer occurs outside of probate and is not treated as a testamentary disposition requiring a will.

Section 3: Adds a new Article 4 to AS 13.33 establishing “Transfer of Boat and Vehicle Title on Death.” This section creates the substantive statutory framework governing transfer-on-death titles for boats and vehicles.

Subsection (a): Authorizes owners of titled boats and vehicles to obtain a transfer-on-death title naming a beneficiary who will receive title upon the death of the sole owner or last surviving joint owner.

Subsection (b): Requires the owner to submit an application on a department-prescribed form, identify up to two designated beneficiaries, and pay a required fee. All joint owners must sign applications to create, revoke, or modify a TOD title.

Subsection (c): Requires the title document to contain the words “transfer on death to” or the abbreviation “TOD” followed by the beneficiary name(s).

Subsection (d): Clarifies that the TOD designation is effective without notice to or acceptance by the beneficiary and does not require consideration.

Subsection (e): Specifies that TOD titles are nontestamentary transfers.

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Subsection (f): Allows the owner to revoke or change the TOD beneficiary at any time during the owner’s lifetime without consent or notice to the beneficiary.

Subsection (g): Provides two methods to revoke or change a TOD title:

1. Transfer ownership of the vehicle or boat to another person; or
2. File an application with the department to remove or change the designated beneficiary and pay the applicable fee.

Subsection (h): Allows a designated beneficiary to disclaim their interest under the Uniform Disclaimer of Property Interests Act.

Subsections (i) – (l): Establish creditor protections and estate liability provisions.

Subsection (m): Clarifies that during the owner’s lifetime, a TOD designation: Does not affect ownership rights; Does not create any present legal interest for the beneficiary; Does not impair creditor rights; Does not affect public assistance eligibility; and Does not subject the property to beneficiary creditors.

Subsection (n): Provides that title transfers to the beneficiary upon the owner’s death if the beneficiary survives the owner by at least 120 hours, unless otherwise limited by statute.

Subsection (o): Requires the department to issue a new certificate of title to the beneficiary upon submission of: Proof of death; An application; and Applicable fees.

Subsection (p): Provides that where multiple beneficiaries receive title, they will hold title as joint tenants with right of survivorship.

Subsection (q): Provides that TOD designations generally cannot be modified or revoked through a will or other instrument outside the statutory process.

Subsection (r): Authorizes the department to adopt regulations necessary to implement the section, including forms and fees.

Subsection (s): Defines key terms used in the section.

Section 4: Amends AS 13.48.110(c). This section updates statutory language relating to enforcement proceedings involving transfer-on-death property to align with the new TOD title provisions established in the bill.

Section 5: Amends AS 13.48.190(5). This section expands the definition of “property” for transfer-on-death purposes to include: Ownership interests in common interest communities; and Leasehold interests in leasehold common interest communities subject to AS 34.08.

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Section 6: Adds AS 28.10.275 relating to motor vehicles. This section authorizes owners of vehicles titled under AS 28.10.201 to obtain a transfer-on-death title under AS 13.33.401, establishing statutory authority for TOD titling of motor vehicles.

Section 7: This section authorizes the Department of Administration to adopt regulations necessary to implement AS 13.33.401, enacted by section 3 of this Act.

Section 8: Provides an immediate effective date for Section 7.

Section 9: Provides an effective date of July 1, 2026, for the remainder of the Act.

Companion or Similar Bills

Please note companion legislation, the sponsor of the companion legislation, and identify any “rider” bills or provisions from other legislation that was included in this final bill. Please include the name of the sponsor of the “rider bill” or provision. If it was added as an amendment in a committee – please indicate the name of the legislator that sponsored the amendment.

Click or tap here to enter text.

Support/Opposition of the Bill

Please identify names, organizations, titles, and phones numbers of those who testified in support or in opposition of this bill.

Sponsors: SENATORS: Kawasaki, Wielechowski, Stedman, Rauscher, Cronk, Yundt, Tilton, Kaufman
REPRESENTATIVES: Eischeid, Josephson

Bill Signing ceremony suggestions (if applicable)

Please provide information for consideration for a bill signing ceremony. Information that is helpful includes: a specific conference, event, venue, date, and the names and contact information of stakeholders who should be considered for an invitation to the bill signing ceremony.

Click or tap here to enter text.

Commissioner’s Signature: Paula Kara **Date:** 5/20/2026

I have reviewed the above information and provided it to the Governor’s Legislative Office for consideration of an action by the Governor on legislation passed during the second session of the 34th Alaska State Legislature.

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